The examination is being carried out on the **following application documents**:

Description, Pages

1-35 as originally filed

Claims, Numbers

1-18 received on 06.08.2008 with letter of 05.08.2008

Drawings, Sheets

1/11-11/11 as originally filed

Reference is made to the following documents; the numbering will be adhered to in the rest of the procedure:

D1: WO 01/85227 A (MEDTRONIC AVE [US]) 15 November 2001 (2001-11-15)
D2: WO 2004/012874 A (US GOVERNMENT [US]; FITZHUGH ANTHONY L [US]; CHENG PEIWEN [US]) 12 February 2004 (2004-02-12)
D3: US 2002/115559 A1 (BATCHELOR MELISSA M [US] ET AL) 22 August 2002 (2002-08-22)
D4: WO 01/26702 A (UNIV AKRON [US]) 19 April 2001 (2001-04-19)
D5: WO 01/10344 A (BARD INC C R [US]) 15 February 2001 (2001-02-15)
D6: WO 2006/037105 A (US GOVERNMENT [US]; HRABIE JOSEPH A [US]; CITRO MICHAEL L [US]; DEROSA) 6 April 2006 (2006-04-06)

1. Amendments - Article 123(2) EPC

Claims to methods of treatment have been deleted and the term "about" in conjunction with ranges of values has been removed. Thus, amended claims 1-18 filed with letter dated of 05.08.2008 do not introduce subject-matter which extends beyond the content of the application as originally filed and do fulfil the requirements of Article 123(2) EPC.

2. Clarity - Article 84 EPC

2.1 First paragraph of the description concerning the related applications should be excised as it is not allowable in European applications.

2.2 The description, from page 33 line 19 to page 34 line 9, implying that the scope of protection may be expanded (see Guidelines CII 4.19 regarding the expression "which is hereby incorporated by reference") should be excised as it leads to lack of clarity under Article 84 EPC.

2.3 To meet the requirements of Rule 42(1)(b) EPC, documents D1-D5 should be identified in the description and the relevant background art disclosed therein should be briefly discussed.

2.4 Product claims 1 and 17 have been drafted as separate independent claims. Under Article 84 EPC in combination with Rule 43(2)EPC an application may contain more than one independent claim in particular category only if the subject-matter claimed falls within one or more of the exceptional situations set out in paragraph a), b) or c) of Rule 43(2)EPC. This is not the case in the present application.
Moreover, two remarks are to be added. Firstly, It is clear from the description on page 1, [0002], last sentence and page 2, [0007] that the following feature is essential to the definition of the invention:

(1) the NO-generating coating is free of organic solvents

Since independent claim 17 does not contain this feature it does not meet the requirement following from Article 84 EPC, taken in combination with Rule 43(1) and (3) EPC, that any independent claim must contain all the technical features essential to the definition of the invention.

Secondly, in claim 17, the expression "wherein said medical device prevents an inflammatory response as compared to the inflammatory response obtained by implanting a medical device with a coating that does not include a nitric oxide generating compound" is a result-to-be-achieved and does not bring any further technical feature, which is unclear under Article 84 EPC.
Therefore, claim 17 can be drafted as depending on claim 1.

2.5 The term "substantially" used in claims 1 and 17 (and throughout the description) to define "free of organic solvents" is vague and unclear and leaves the reader in doubt as to the meaning of the technical feature to which it refers, thereby rendering the definition of the subject-matter of said claims unclear (Article 84 EPC).

3. Novelty - Article 54 EPC

Taking into account the arguments of the Applicant exposed in the letter dated of 05.08.2008, the following is to be noted concerning novelty:

D1 discloses (see claims) a nitric oxide releasing biocompatible metallic medical device wherein the metal surface is reacted with a polyisocyanate, polyester, isocyanatosilane and a diazeniumdiolate.
D2 discloses (see paragraphs 39-47, claims) similar devices for releasing nitric oxide as D1.
D3 discloses (see paragraphs 16-17,20-22, figures, claims) biocompatible metallic medical devices with, e.g. a metal surface coated with a polymer conjugated with copper ligand complexes that can generate nitric oxide, wherein the ligands are cyclotetramines.
D4 discloses (see claims) medical devices for delivering nitric oxide comprising poly(ethyleneimine)-diazenium diolate nanofibres as nitric oxide donor.
D5 discloses (see example 1, claims) conjugates bound to a metal surface of a medical device comprising a polymer and a nitric oxide releasing compound.
D6 discloses (see examples, claims) nitric oxide releasing polymer coated medical devices.

Since D1, D2, D4, D5 and D6 do not disclose nitric oxide *generating* compounds, the subject-matter of claims 1-18 is novel over these documents under Article 54(1) and (2) EPC.
D3 does disclose a nitric oxide generating compound but the thickness of coating is not restricted to the range given in claim 1 of the present application. Therefore the subject-matter of claims 1-18 is also novel over D3 under Article 54(1) and (2) EPC.

4. Inventive Step - Article 56 EPC

D3, which is considered as the closest prior art for the subject-matter of the present application, discloses (see paragraphs 16-17,20-22, 39-40, figures, claims) biocompatible metallic medical devices with, e.g. a metal surface coated with a polymer conjugated with copper ligand complexes that can generate nitric oxide, wherein the ligands are cyclotetramines.

The applicant suggested that the thickness of the coating in D3 is 150 µm. However, this value, given in [0039], is the thickness of the polymer membrane supposed to represent the substrate, i.e. medical device in the example. The coating itself is disclosed in [0040] as immobilized XO hydrogel prepared by crosslinking XO with bovine serum albumine in

the presence of glutaraldehyde. No thickness is precised for the NO-generating coating.

The difference between the subject-matter of novel independent claims 1 and 17 and the closest prior art is the thickness of the NO-generating coating: in D3, the thickness of the coating is not specified while in claims 1 and 17 it is restricted between 10 and 2000nm thick.

The technical effect of this difference is that the coating has a reduced impact on the size and shape of the device.

The problem to be solved is how to provide a medical device having a NO-generating coating with a reduced impact on the size and shape of the device.
In D3, it is advised to further coat the device with an extra layer to improve the NO-generation, therefore, the man skilled in the art would not have considered a reduction of the coating thickness to solve the problem posed above.
The solution proposed by the Applicant in claims 1 and 17 and their dependent claims 2-16 and 18 does involve an inventive step within the meaning of Article 56 EPC.

5. Additional Remarks

The applicant is invited to file new claims which take account of the above comments.

In order to facilitate the examination of the conformity of the amended application with the requirements of Article 123(2) EPC, the applicant should clearly identify the amendments made, irrespective of whether they concern amendments by addition, replacement or deletion, and indicate the passages of the application as filed on which these amendments are based (see Guidelines E-II, 1).

If the applicant considers it appropriate, these indications could be submitted in handwritten form on a copy of the relevant parts of the application as filed.

When filing amended claims the applicant should at the same time bring the description into conformity with the amended claims. Care should be taken during revision, especially of the introductory portion and of any statements of problem or advantage, not to add subject-matter which extends beyond the content of the application as originally filed (Article 123(2) EPC).